FIND IT / NEWCASTLE, LAKE MACQUARIE & NSW

The Newcastle tenant's lease checklist.

12 things to check before you sign.

Use this with your team and solicitor. Tick each item once your questions are resolved.

☐ 01 Premises and permitted use

Confirm the premises, permitted use and practical access.

YOS TIP Visit at your busiest time. Check parking, deliveries, lifts and internet availability, then ask your solicitor to confirm that the permitted use covers your activities.

☐ 02 Starting and finishing

Record commencement, expiry and any conditions before occupation.

YOS TIP Put access, fitout, moving and trading dates on one timeline. Confirm when rent starts and who carries the cost if approvals or landlord works are delayed.

☐ 03 Your option notice window

Read when and how an option notice must be served.

YOS TIP Copy the exact notice window and delivery method from the lease. Set reminders before it opens and nominate one person to confirm notice has been received.

☐ 04 Rent and outgoings

Check whether rent is gross or net and what sits outside it.

YOS TIP Request an itemised outgoings estimate. Add rent, outgoings, GST, utilities, parking and cleaning to a monthly budget so you compare spaces on the same basis.

☐ 05 Rent reviews

Understand fixed, CPI and market rent review wording.

YOS TIP Ask for a year-by-year rent schedule and model more than one review scenario. Have your solicitor explain any minimum increase and market review dispute process.

☐ 06 Incentives in writing

Document rent-free periods, landlord works and contributions.

YOS TIP Record amounts, payment dates and conditions in the final documents. Check whether outgoings continue during rent-free periods and whether incentives can be clawed back.

General information only. Your lease and circumstances need individual legal advice.

A clearer lease starts with a conversation.

Free Lease Health Check: yourofficespace.au/lease-health-check

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☐ 07 Fitout responsibilities

Confirm who pays for approvals, fitout and building works.

YOS TIP Build one budget for works, approvals, furniture, IT and moving. Identify who obtains each approval and get written scope and quotes before committing.

☐ 08 Repairs and insurance

Understand maintenance, repair and insurance responsibilities.

YOS TIP List responsibility for air-conditioning, lifts and other equipment. Ask about service records and replacement costs, then check the insurance requirements with your broker.

☐ 09 Make-good at the end

Assess exit obligations and record the ingoing condition.

YOS TIP Agree a dated photo condition report before taking possession. Get an early estimate of removal and reinstatement costs, then ask your solicitor to clarify the exit clause.

☐ 10 Changes during the lease

Read assignment, subletting, relocation and demolition clauses.

YOS TIP Consider a growing team, downsizing or selling the business. Ask your solicitor what approvals, costs and notice apply if your needs change or the landlord relocates you.

☐ 11 Security and signing

Check deposits, bank guarantees, personal guarantees and authority.

YOS TIP Ask your bank how security affects available cash. Confirm the amount and release conditions, and have your solicitor explain any personal exposure before signing.

☐ 12 The final legal review

Have your solicitor check the final lease against agreed terms.

YOS TIP Keep a single list of agreed commercial terms and unresolved questions. Send it with the final documents to your solicitor so verbal promises and negotiated changes can be checked.

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